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Leviathan 1 Thomas Hobbes

13. The Natural Condition of Mankind

...to support this, more is needed than any opinion regarding the sanctity, wisdom, or honesty of the teachers of the believers!

So I can attribute all the changes of religion in the world to one and the same cause: displeased priests, not only among Catholics, but even in the church that most proudly claims to have reformed itself. [Curley suggests this targets the Presbyterians.]

Chapter 13. Of the Natural Condition of Mankind as Concerning Their Felicity and Misery

Nature has made men so equal in the faculties of body and mind that, though there may sometimes be found one man manifestly stronger in body or of quicker mind than another, yet when all is taken together, the difference between one man and another is not so considerable that one man can thereupon claim to himself any advantage—in strength, skill, or the like—to which another may not pretend as well as he. For as to bodily strength:

The weakest has strength enough to kill the strongest, either by secret machination or by confederacy with others who are in the same danger with himself.

As to the faculties of the mind: I find an even greater equality among men in these matters than that of bodily strength. (In this discussion, I set aside skills based on words, and especially that skill of being guided by general and infallible rules, known as 'science.' Very few possess this, and even then not in many things. I set this aside because it is not a native faculty born with us, nor acquired—as we acquire prudence—while looking for something else.) Prudence is simply experience; and men acquire an equal measure of it in an equal time spent on the things to which they equally apply themselves. What makes such equality incredible is nothing other than a person's vain conception of their own wisdom; most men think they possess more of it than common people—that is, more than everyone else, except perhaps a few whom they value for their fame or because they agree with them. It is a fact of human nature that no matter how much a man acknowledges many others to be wittier, more eloquent, or more learned than himself, he will hardly believe there are many as wise as himself; for he sees his own wisdom at hand, and other men's at a distance. But this proves that men are in that point equal, rather than unequal. For there is ordinarily no greater sign of the equal distribution of anything than that every man is contented with his share!

Competition: From this equality of ability arises equality of hope in the attaining of our ends. Therefore, if any two men desire the same single thing, which nevertheless they cannot both enjoy, they become enemies; and on the way to their end (which is principally their own

conservation, and sometimes their delectation only), each endeavors to destroy or subdue the other. And from this it comes to pass that where an invader has no more to fear than another single man's individual power, if one plants, sows, builds, or possesses a convenient seat, others may probably be expected to come prepared with forces united to dispossess and deprive him, not only of the fruit of his labor, but also of his life or liberty. And the invader again is in the like danger of another.

Diffidence (Distrust): And from this mutual diffidence among men, there is no way for any man to make himself secure so reasonable as anticipation—that is, by force or wiles, to master the persons of all men he can, so long till he sees no other power great enough to endanger him. This is no more than his own conservation requires, and is generally allowed. And this goes further than you might think. Because there are some who, taking pleasure in contemplating their own power in the acts of conquest, pursue it further than their security requires, this increases the security needs of others. Men who would otherwise be glad to be at ease within modest bounds cannot long subsist, relying on a purely defensive posture, without increasing their power by further invasions. This increase of dominion over men, being necessary to a man's conservation, ought to be allowed him.

Glory: Every man looks that his companion should value him at the same rate he sets upon himself; and upon any sign of undervalue or contempt, he naturally endeavors, as far as he dares, to extort a greater value from his contenders—by damage upon those that despise him, and by example upon others. I say 'as far as he dares'; but where there is no common power to keep them in peace, 'as far as he dares' is enough to make them destroy one another.

So that in the nature of man, we find three principal causes of quarrel:

- First, **competition**
- Second, **diffidence**
- Third, **glory**

The first makes men invade for **gain**; the second, for **safety**; the third, for **reputation**. The first use violence to make themselves masters of other men's persons, wives, children, and cattle; the second, to defend themselves, their families, and their property; the third, for trifles—as a word, a smile, a different opinion, and any other sign of undervalue, either direct toward their persons or indirectly toward their family, their friends, their nation, their profession, or their name.

This makes it manifest that during the time men live without a common power to keep them all in awe, they are in that condition which is called **war**; and such a war as is of every man against every man. For WAR consists not in actual fighting or the act of battle only, but in a known disposition thereto during all the time there is no assurance to the contrary. Therefore,

the notion of time in 'war' is to be considered as it is in the nature of 'bad weather.' For as the nature of foul weather lies not in a shower or two of rain, but in an inclination thereto of many days together, so the nature of war consists not in actual fighting, but in the known disposition thereto during all the time there is no assurance to the contrary. All other time is PEACE.

Whatsoever therefore is consequent to a time of war, where every man is enemy to every man, the same is consequent to the time wherein men live without other security than what their own strength and their own invention shall furnish them withal. In such condition, there is no place for industry, because the fruit thereof is uncertain: and consequently no culture of the earth, no navigation, nor use of the commodities that may be imported by sea, no commodious building, no instruments of moving and removing such things as require much force, no knowledge of the face of the earth, no account of time, no arts, no letters, no society; and which is worst of all, continual fear and danger of violent death; and the life of man, solitary, poor, nasty, brutish, and short.

It may seem strange to anyone who has not thoroughly considered these things that nature should thus dissociate men, and render them apt to invade and destroy one another. Perhaps, therefore, not trusting this inference drawn from the passions, you will wish to have it confirmed by experience. Consider, then, how you act: when taking a journey, you arm yourself and seek not to go solitary; when going to sleep, you lock your doors; even within your own house, you lock your chests; and you do all this when you know there are laws and public officers armed to revenge all injuries done to you. Ask yourself: What opinion do you have of your fellow subjects when you ride armed? What opinion of your fellow citizens when you lock your doors? What opinion of your children and servants when you lock your chests?

Do you not there accuse mankind by your actions as much as I do by my words? But neither of us accuses man's nature in it. The desires, and other passions of man, are in themselves no sin. No more are the actions that proceed from those passions, till they know a law that forbids them; which till laws be made they cannot know, nor can any law be made till they have agreed upon the person that shall make it. But why should we try to demonstrate to learned men something that is known even by dogs who bark at visitors? Sometimes barking only at strangers, but at night barking at everyone.

It may peradventure be thought there was never such a time nor condition of war as this; and I believe it was never generally so, all over the world. Yet there are many places where people live like that even now. For the savage people in many places of America, except the government of small families, the concord whereof dependeth on natural lust, have no government at all, and live at this day in that brutish manner, as I said before. Howsoever, it may be perceived what manner of life there would be, where there were no common power to fear, by the degenerate manner of life into which civil war has plunged men that have formerly lived under a peaceful government.

Even if there had never been any time wherein particular men were in a condition of war one against another, yet in all times kings and persons of sovereign authority, because of their independency, are in continual jealousies, and in the state and posture of gladiators, having their weapons pointing, and their eyes fixed on one another; that is, their forts, garrisons, and guns upon the frontiers of their kingdoms, and continual spies upon their neighbours; which is a posture of war. But because they uphold thereby the industry of their subjects, there does not follow from it that sort of misery which accompanies the liberty of particular men.

To this war of every man against every man, this also is consequent; that nothing can be unjust. The notions of right and wrong, justice and injustice, have there no place. Where there is no common power, there is no law; where no law, no injustice. Force and fraud are in war the two cardinal virtues. Justice and injustice are none of the faculties neither of the body nor mind [here = 'natural capacities']. If they were, they might be in a man that were alone in the world, as well as his senses and passions. They are qualities that relate to men in society, not in solitude. It is consequent also to the same condition that there be no propriety, no dominion, no *mine* and *thine* distinct; but only that to be every man's that he can get, and for so long as he can keep it.

And reason suggesteth convenient articles of peace, upon which men may be drawn to agreement. These articles are they which otherwise are called the Laws of Nature, whereof I shall speak more particularly in the two following chapters.

Chapter 14. Of the First and Second Natural Laws, and of Contracts

The **RIGHT OF NATURE**, which writers commonly call *jus naturale*, is the liberty each man hath to use his own power as he will himself for the preservation of his own nature; that is to say, of his own life; and consequently, of doing anything which, in his own judgment and reason, he shall conceive to be the aptest means thereunto. [The Latin expression *jus naturale* standardly means 'natural law'; but *jus* can also mean 'right', and Hobbes clearly uses the term here in the sense of 'natural right'.]

By **LIBERTY**, is understood, according to the proper signification of the word, the absence of external impediments: which impediments may oft take away part of a man's power to do what he would, but cannot hinder him from using the power left him according as his judgment and reason shall dictate to him.

A **LAW OF NATURE**, (*lex naturalis*,) is a precept, or general rule, found out by reason, by which a man is forbidden to do that which is destructive of his life, or taketh away the means of preserving the same, and to omit that by which he thinketh it may be best preserved. For though they that speak of this subject use to confound *jus* and *lex*, *right* and *law*, yet they ought to be distinguished, because **RIGHT** consisteth in liberty to do, or to forbear; whereas **LAW** determineth and bindeth to one of them: so that law and right differ as much as obligation and liberty; which in one and the same matter are inconsistent.

And because the condition of man (as hath been declared in Chapter 13) is a condition of war of everyone against everyone, in which case everyone is governed by his own reason, and there is nothing he can make use of that may not be a help unto him in preserving his life against his enemies; it followeth that in such a condition every man has a right to everything, even to one another's body. And therefore, as long as this natural right of every man to everything endureth, there can be no security to any man...

Part 2. Of Commonwealth

Chapter 17. Of the Causes, Generation, and Definition of a Commonwealth

Men naturally love liberty and dominion over others; what, then, is the final cause, end, or design they have in mind when they impose upon themselves that restraint under which they live in commonwealths?

It is the foresight of their own preservation, and of a more contented life thereby; that is to say, of getting themselves out from that miserable condition of war which (as I have shown) necessarily follows from the natural passions of men, when there is no visible power to keep them in awe and tie them by fear of punishment to the performance of their covenants, and to the observation of those laws of nature set down in Chapters 14 and 15. For the laws of nature—such as justice, equity, modesty, mercy, and (in sum) doing to others as we would be done to—are contrary to our natural passions, unless some power terrifies and compels us to observe them. In the absence of such a power, our natural passions carry us to partiality, pride, revenge, and the like. Covenants without the sword are but words and of no strength to secure a man at all. Every man has observed the laws of nature when he has had the will to do so, that is, when he can do so safely; but if there be no power erected, or not great enough for our security, every man will and may lawfully rely on his own strength and art for caution against all other men. Wherever men lived in small families without larger organized bodies, the trade of robbery was so far from being regarded as contrary to the law of nature that it was held in honor; so that the more spoils a man acquired by robbery, the greater was his honor. The only restraint upon robbery came from the laws of honor, which bound robbers to abstain from cruelty, leaving to their victims their lives and instruments of husbandry. Nowadays cities and kingdoms (which are but greater families) do what small families did then: for their own security, alleging their danger and fear of invasion or the suspicion that the assaulted state may assist invaders, they enlarge their dominions. They endeavor as far as they can, by open force and secret stratagems, to subdue or weaken their neighbors; and having no other guarantee of safety, they do so justly and are honored for it in succeeding times.

Nor can the joining together of a small number of men give them this security everyone seeks; for when numbers are small, a slight addition on the one side or the other gives so great an advantage of strength as is sufficient to secure victory, thereby encouraging an invasion. How many men are required to make us secure? This depends not on any particular number, but on comparison with the enemy we fear. If the enemy is not so far superior in numbers as to make the outcome of a battle certain, that is sufficient for us to deter them from initiating a war.

And be there never so great a multitude, yet if their actions be directed according to their particular judgments and particular appetites, they can expect from their actions no defense or protection, neither against a common enemy nor against the injuries of one another. For being pulled in different directions by their differing opinions concerning the best use and application of their strength, they do not help, but hinder one another, and reduce their strength to nothing by their mutual opposition. When this happens, they are easily subdued by a very few that agree together; and when there is no common enemy, they make war upon each other for their particular interests. For if we could suppose a great multitude of men to agree in the observation of justice and other laws of nature, without a common power to keep them all in awe, we might as well suppose all mankind to do the same; and then there neither would be, nor need to be, any civil government or commonwealth at all, because there would be peace without subjection.

Nor is it enough for the security which men desire throughout their lives that they be governed and directed by one judgment for a limited time—as for one battle, or one war. For although they obtain a victory by their unanimous efforts against a foreign enemy, yet

afterwards—when they have no common enemy, or when some consider as an enemy him whom others regard as a friend—the difference of their interests makes it certain that they will dissolve and fall once more into a war amongst themselves.

It is true that certain living creatures, such as bees and ants, live sociably with one another (which is why Aristotle numbers them among "political" creatures [*Greek: politike = social*]), though each is directed only by its private judgment and appetite, and they lack the art of speech by which one might signify to another what is convenient for the common benefit. You may perhaps wish to know why mankind cannot do the same. To this I answer in six parts:

- **(1)** Men are continually in competition for honor and dignity, which these creatures are not; and consequently amongst men there ariseth on that ground envy, hatred, and finally war, which is not the case with these animals.
- **(2)** Amongst these lower creatures, the common good differeth not from the private; and being by nature inclined to their private benefit, they procure thereby the common benefit. But a man's greatest joy in his own goods consists in comparing them with those of others and finding his own to be greater!
- **(3)** Bees and ants, etc., having not (as man hath) the use of reason, do not see, nor think they see, any fault in the administration of their common affairs; whereas among men there are very many who think themselves wiser and better able to govern the public than the rest. These men strive to reform and innovate, one this way and another that way, and thereby bring the commonwealth into distraction and civil war.
- **(4)** These creatures, though they have some use of voice to make known to one another their desires and other affections, yet lack that art of words by which some men represent to others that which is good in the likeness of evil, and evil in the likeness of good, and distort the apparent greatness of good and evil. These activities enable their practitioners to make men discontented and to disturb their peace at their pleasure.
- **(5)** Irrational creatures cannot distinguish between being injured and being harmed; therefore, as long as they are physically at ease, they are not offended with their fellows; whereas man is at his most troublesome when he is most at ease, for then he loves to display his wisdom and control the actions of those that govern the commonwealth.

(6) The agreement of these creatures is natural, whereas that of men is by covenant only, which is artificial; it is no wonder, therefore, if there be something else required, besides covenant, to make their agreement constant and lasting—namely, a common power to keep them in awe and to direct their actions to the common benefit.

The only way to erect such a common power, as may be able to defend them from the invasion of foreigners and the injuries of one another, and thereby to secure them in such sort that by their own industry and by the fruits of the earth they may nourish themselves and live contentedly, is to confer all their power and strength upon one man, or upon one assembly of men, that may reduce all their wills, by plurality of voices, unto one will. That is to say: to appoint one man, or assembly of men, to bear their person; and everyone to own and acknowledge himself to be the author of whatsoever he that bears their person shall act, or cause to be acted, in those things which concern the common peace and safety; and therein to submit their wills, every one to his will, and their judgments to his judgment. [Hobbes

explains the core concepts of this sentence earlier in Chapter 16.] This is more than consent or concord; it is a real unity of them all. They are united in that they form one and the same person, created by covenant of every man with every man, in such manner as if every man should say to every other: *I authorise and give up my right of governing myself to this man, or to this assembly of men, on this condition; that thou give up, thy right to him, and authorise all his actions in like manner.* [Hobbes here uses the second-person singular 'thou' and 'thy'—rare in *Leviathan*—emphasizing the one-to-one character of the covenant.]

This done, the multitude so united in one person is called a **COMMONWEALTH**, in Latin *CIVITAS*. This is the generation of that great **LEVIATHAN**, or rather (to speak more reverently) of that *mortal god* to which we owe, under the *immortal God*, our peace and defense. For by this authority, given him by every particular man in the commonwealth, he hath the use of so much power and might conferred on him that, by terror thereof, he is enabled to form the wills of them all to peace at home and mutual aid against their enemies abroad. And in him consisteth the essence of the commonwealth, which may be defined thus:

A commonwealth is one person, of whose acts a great multitude, by mutual covenants one with another, have made themselves every one the author, to the end he may use the strength and means of them all, as he shall think expedient, for their peace and common defense.

And he that carrieth this person is called **SOVEREIGN**, and said to have *sovereign power*; and everyone besides, his **SUBJECT**.

The attaining unto this sovereign power is by two ways:

- One is by natural force, as when a man maketh his children to submit themselves and their children to his government, being able to destroy them if they refuse; or subdueth his enemies to his will by war, sparing their lives on condition of their obedience.
- The other is when men agree amongst themselves to submit to some man or assembly of men voluntarily, on confidence to be protected by him against all others.

This latter may be called a political commonwealth, or commonwealth by *institution*; and the former, a commonwealth by *acquisition*. I shall speak first of a commonwealth by institution, returning to a commonwealth by acquisition in Chapter 20.

Chapter 18. Of the Rights of Sovereigns by Institution

A commonwealth is said to be *instituted* when a multitude of men do agree, and covenant, every one with every one:

That whatsoever man, or assembly of men, shall be given by the major part the right to represent the person of them all (that is to say, to be their representative), everyone—as well

he that voted for it as he that voted against it—shall authorize all the actions and judgments of that man, or assembly of men, in the same manner as if they were his own, to the end to live peaceably amongst themselves, and be protected against other men.

This binds those who did not vote for this representative as well as those who did. For unless all the votes are understood to be included in the majority decision, they have assembled in vain and contrary to the very end each proposed for himself, namely the peace and protection of all.

From this form of the institution are derived all the rights and powers of him or them on whom sovereign power is conferred, as well as the duties of all the subjects. I shall set out these rights, powers, and duties under twelve heads.

First, because the people make a covenant, it is to be understood that they are not obliged by any former covenant to anything repugnant to this new one. Consequently, they that have instituted a commonwealth, being thereby bound by covenant to own the actions and judgments of one sovereign, cannot lawfully make a new covenant amongst themselves to be obedient to any other, in any thing whatsoever, without his permission. And therefore, they that are subjects to a monarch cannot without his leave cast off monarchy and return to the confusion of a disunited multitude, nor transfer their person from him that beareth it to another man, or other assembly of men; for they are bound, every man to every man, to own and be reputed author of all that he that already is their sovereign shall do and judge fit to be done; so that any one man dissenting, all the rest should break their covenant made to that man, which is injustice [from the semicolon to the end, these words are Hobbes's]. And besides, they have given the sovereignty to him that beareth their person; and therefore if they depose him, they take from him that which is his own, and so it is again injustice. Furthermore, if he that attempteth to depose his sovereign be killed or punished by the sovereign for such attempt, he is author of his own punishment, as being by the covenant author of all that his sovereign shall do; and whereas it is injustice for a man to do anything for which he may be punished by his own authority, he is also upon that title unjust. And whereas some men have pretended for their disobedience unto their sovereign a new covenant made, not with men, but with God; this also is unjust, for there is no covenant with God but by mediation of somebody that representeth God's person, which none doth but God's lieutenant, who hath the sovereignty under God. But this pretence of covenant with God is so evident a lie, even in the pretenders' own consciences, that it is not only an act of an unjust, but also of a vile and unmanly disposition.

Secondly, because the right of bearing the person of them all is given to him they make sovereign by covenant only of one to another, and not of him to any of them; there can happen no breach of covenant on the part of the sovereign; and consequently none of his subjects, by any pretence of forfeiture, can be freed from his subjection.

That the sovereign maketh no covenant with his subjects in the process of becoming sovereign is manifest. To see why this is true, suppose that it is not true, and for ease of explanation, suppose that you are one of the subjects. In that case, the sovereign must either make a covenant with the whole multitude as one party, or else make a several covenant with each particular man, including one with you. But with the whole multitude as one party it is impossible, because as yet they are not one person; and if he make so many several covenants as there be men, those covenants after he hath the sovereignty become void. Why? Because whatever act the sovereign can be pretended to have done in breach of the covenant with you

(for instance), is the act both of yourself and of all the rest, because done by the sovereign and therefore in the person, and by the right of every particular one, yourself included.

Besides, if any one or more of them pretend a breach of the covenant made by the sovereign in his institution, and others or one other of his subjects, or himself alone, pretend there was no such breach, there is in this case no judge to decide the controversy: it returneth therefore to the sword again; and every man recovereth the right of protecting himself by his own strength, contrary to the design they had in the institution. . . . The opinion that any monarch receiveth his power by covenant, that is to say, on condition, proceedeth from want of understanding this easy truth: that covenants being but words and breath, have no force to oblige, contain, constrain, or protect any man, but what it has from the public sword; that is, from the untied hands of that man, or assembly of men, that hath the sovereignty, and whose actions are avouched by them all, and performed by the strength of all united in his sovereignty.

When an assembly of men is made sovereign, then no man imagineth any such covenant to have passed in the institution; for no man is so dull as to say, for example, the people of Rome made a covenant with the Romans to hold the sovereignty on such and such conditions; which not performed, the Romans might lawfully depose the Roman people! Why do not men see that the basic principles of a monarchy are the same as those of a popular government? They are kept from seeing it by the ambition of men who are kinder to the government of an assembly than that of a monarchy, because they may hope to participate in the former, but despair of enjoying the latter.

Thirdly, because the major part hath by consenting voices declared a sovereign, he that dissented must now consent with the rest; that is, be contented to avow all the actions he shall do, or else justly be destroyed by the rest. For if he voluntarily entered into the congregation of them that were assembled to consider instituting a sovereign, he sufficiently declared thereby his willingness (and therefore tacitly covenanted) to stand to what the major part should ordain: and therefore, if he refuse to stand thereto, or make protestation against any of their decrees, he does contrary to his tacit covenant, and therefore unjustly. And whether he be of the congregation or not, and whether his consent be asked or not, he must either submit to their decrees or be left in the condition of war he was in before; wherein he might without injustice be destroyed by any man whatsoever.

Fourthly, because every subject is by this institution author of all the actions and judgments of the sovereign instituted, it followeth that nothing the sovereign can do to a subject can be an injury, nor ought he to be accused by any of them of injustice. For he that doth anything by authority from another doth therein no injury to him by whose authority he acteth; but by this institution of a commonwealth, every particular man is author of all the sovereign doth; and consequently he that complaineth of injury from his sovereign complaineth of that whereof he himself is author; and therefore ought not to accuse any man but himself; no, nor himself of injury, because to do injury to oneself is impossible. [Up to this point in this paragraph, 'injury' replaces Hobbes's 'wrong'.] It is true that they that have sovereign power may commit iniquity [= 'evil actions'], but not injustice or injury in the proper signification of the word.

Fifthly, following from the preceding point: no man that hath sovereign power can justly be put to death, or in any other way punished by his subjects. For seeing every subject is author of the actions of his sovereign, if he punish the sovereign, he punisheth another for actions committed by himself.

And because the end of this institution is the peace and defense of them all, and whosoever has right to the end has right to the means, it belongeth of right to whatever man or assembly that hath the sovereignty to be judge both of the means of peace and defense, and also of the hindrances and disturbances of the same; and to do whatsoever he shall think necessary to be done, both beforehand for the preserving of peace and security by preventing discord at home and hostility from abroad, and for the recovery of peace and security after they are lost. And therefore,

Sixthly, it is annexed to the sovereignty [= 'to the man or assembly of men on whom sovereignty is conferred'] to be judge of what opinions and doctrines are averse, and what conducing to peace; and consequently, on what occasions, how far, and what men are to be trusted with speaking unto multitudes of people; and who shall examine the doctrines of all books before they be published. For the actions of men proceed from their opinions, and in the well-governing of opinions consisteth the well-governing of men's actions, in order to their peace and concord. In evaluating doctrines, nothing should be considered but truth; yet this is not contrary to regulating doctrines on grounds concerning peace. For a doctrine that is destructive to peace cannot be true, no more than peace and concord can be against the law of nature. It is true that in a commonwealth, where by the negligence or unskilfulness of governors and teachers false doctrines are generally received, the contrary truths may often be found disturbing. Yet the most sudden and rough breaking in of a new truth that can be does never break the peace, but only sometimes awake the war. I said "awake" the war, not "start" it. For men that are so slackly governed that they dare take up arms to defend or introduce an opinion are already in a state of war; their condition is not peace, but only a cessation of arms for fear of one another, and they live, as it were, continually upon the precincts of battle. It belongeth therefore to him that hath the sovereign power to be judge, or constitute all judges of opinions and doctrines, as a thing necessary to peace, thereby to prevent discord and civil war.

Seventh, the sovereign possesses the power to prescribe the entire set of rules determining what goods each subject may enjoy and what actions they may undertake without interference from fellow subjects; and this is what men call property or propriety. Prior to the establishment of the sovereign power, every individual possessed a right to everything, a condition that inevitably generates conflict; hence, the institution of property is indispensable to peace and depends entirely upon the sovereign authority. These rules governing property—the division of *meum* and *tuum* (mine and thine)—as well as the standards defining right, wrong, lawful, and unlawful conduct, constitute the civil laws of the commonwealth.

Eighth, the sovereign holds the sole right of judicature, which is the authority to hear and decide all controversies concerning both matters of law (civil or natural) and matters of fact. If disputes are left unresolved, subjects have no security against mutual injury, the laws concerning property become utterly ineffective, and every individual is forced back upon their own natural right of self-preservation through personal force—a direct relapse into the condition of war, which contradicts the very purpose of establishing a commonwealth.

Ninth, the sovereign alone possesses the right to make war and peace with other nations and commonwealths. This includes judging whether a war serves the public good, deciding what forces must be gathered, equipped, and financed, and levying taxes upon subjects to cover those expenditures. The ultimate defense of the people rests in military power, and the effectiveness of that power depends on the unification of forces under a single command, which resides in the sovereign. Indeed, absolute command over the armed forces is itself

sufficient to constitute sovereignty; thus, whoever is appointed general of an army remains subordinate to the sovereign power as supreme commander.

Tenth, it belongs exclusively to the sovereign to choose and appoint all counselors, ministers, magistrates, and officers, in times of both peace and war. Because the sovereign is charged with the end of securing peace and defense, it is understood that the sovereign possesses the authority to employ whatever means and agents are deemed most suitable for that end.

Eleventh, the sovereign is entrusted with the authority to reward subjects with riches or honors, as well as to inflict punishments—whether corporal, pecuniary, or ignominious—either in accordance with previously established laws or, where no law exists, according to sovereign discretion in determining what best encourages service to the commonwealth or deters harmful actions.

Twelfth, considering how naturally prone men are to overvalue themselves, to demand high regard from others, and to look upon their peers with contempt—tendencies that constantly breed resentment, factional rivalry, and civil strife—it is necessary to have public standards of honor and an authoritative scale of worth. Because the sovereign holds the supreme command of all forces and the ultimate authority over all controversies, it belongs to the sovereign to bestow titles of honor, to designate the social order and rank of each citizen, and to determine the mutual signs of respect that subjects must show one another in public and private life. These are the rights which make the essence of sovereignty, and which are the marks whereby a man may discern in what man, or assembly of men, the sovereign power is placed and resideth. For these are incommunicable and inseparable. The sovereign may transfer the power to coin money, to dispose of the estate and persons of infant heirs, to have pre-emption in markets, and any other prerogative governed by specific laws, while still retaining the power to protect his subjects. But if he transfer the militia, he retains the judicature in vain, for want of execution of the laws; or if he give away the power of raising money, the militia is useless; or if he give away the government of doctrines, men will be frightened into rebellion with the fear of spirits. And so, if we consider any of the said rights, we shall presently see that the holding of all the rest will produce no effect, in the conservation of peace and justice, for which end all commonwealths are instituted.

And this division of powers that ought not to be divided was referred to when it was said that a kingdom divided in itself cannot stand (Mark 3:24); for unless this division precede, division into opposite armies can never happen. If the greater part of England had not first been of an opinion that these powers were divided between the King, and the Lords, and the House of Commons, the people had never been divided and fallen into this civil war—first over disagreements in politics, and afterwards about the freedom of religion—which has instructed men so well in this point of sovereign rights that most people in England now see that these rights are inseparable. This will be generally acknowledged when peace is restored, and will continue to be so as long as their miseries are remembered (though no longer, unless the vulgar be better taught than they have hitherto been!).

And because these rights are fundamental and inseparable, it follows that in whatever words any of them seem to be granted away by the sovereign, yet if the sovereign power itself be not also at the same time explicitly renounced, the grant is void, and the title of "sovereign" is no longer given by the grantors to him that made the grant; for when he has granted all he can, if we grant back, or if he retain the sovereignty itself, all the rights supposed to be given away are restored to him, as being inseparably annexed to the sovereignty.

This great authority being indivisible, and inseparably annexed to the sovereignty, there is little ground for the opinion of them that say of sovereign kings, though they be greater than each of their subjects, yet they have less power than all their subjects together. For if by 'all together' they mean not the collective body as one person, then 'all together' and 'each one' mean the same thing, and the speech is absurd. But if by 'all together' they understand them as one person (which person the sovereign bears), then the power of 'all together' is the same with the sovereign's power, and so again the speech is absurd. This absurdity they could see well enough when the sovereign is an assembly of the whole people, but in a monarch they see it not; and yet the power of sovereignty is the same, in whomsoever it be placed.

And as the power, so also the honor of the sovereign, ought to be greater than that of any, or all, of the subjects. For in the sovereignty is the fountain of honor. The dignities of lord, earl, duke, and prince are his creations. And as in the presence of the master, the servants are equal, and without any honor at all; so are the subjects in the presence of the sovereign. And though they shine some more, some less, when they are out of his sight; yet in his presence they shine no more than the stars in the presence of the sun.

Yet someone may here object that the condition of subjects is very miserable, as being exposed to the lusts and other irregular passions of him, or them, that have so unlimited a power. Commonly, they that live under a monarch think it the fault of monarchy, and they that live under the government of democracy, or other sovereign assembly, attribute all the inconvenience to that form of commonwealth (whereas the power in all forms, if they be perfect enough to protect them, is the same). These complainers do not consider that the condition of man cannot be without some inconveniences, and that the greatest that in any form of government can possibly happen to the people in general is scarce sensible, in respect of the miseries and horrible calamities that accompany a civil war, or that dissolute condition of masterless men, without subjection to laws and a coercive power to tie their hands from rapine and revenge.

Nor do they consider that the greatest burdens imposed on subjects by sovereign rulers do not proceed from any pleasure or profit they can expect from hurting or weakening their subjects (in whose vigor consists their own strength and glory), but from the stubbornness of the subjects themselves, who, being unwilling to contribute to their own defense, make it necessary for their rulers to draw from them in time of peace whatever can be collected, so that they may be able to resist their enemies or gain an advantage against them should an occasion suddenly arise. For all men are provided by nature with notable magnifying glasses (that is, their passions and self-love), through which every little payment appears a great grievance; but are destitute of those prospective glasses (namely, moral and civil science) to see far off the miseries that hang over them, and cannot without such payments be avoided.

Bu özet metnini de bozuk sembol ve liste imlerini düzelterek, diğer metinlerle tam uyumlu, temiz ve akademik bir İngilizce formatına getirelim:

Summary of Hobbes – *Leviathan*, Chapters 13–14 & 17

Hobbes begins by arguing that to understand human nature, we must look beyond religious teachings. He asserts that all major changes in religion originate from discontented priests rather than divine causes.

1. Natural Equality of Humans Hobbes states that all people are naturally equal in both body and mind. Even if one person is manifestly stronger or smarter than another, the overall difference is never large enough for one person to claim an exclusive advantage over others.

- **Example:** Even the weakest person has enough strength to kill the strongest, either through secret plots or by forming alliances with others who share the same danger.

In faculties of the mind, equality is even greater. Most people believe themselves wiser than almost everyone else simply because they view their own wisdom up close and that of others from a distance.

2. Three Causes of Conflict in Human Nature Because humans share equal capacities, they hold an equal hope of attaining their ends. When two people desire the same object that cannot be shared, conflict inevitably arises. Hobbes identifies three principal causes of quarrel:

1. **Competition:** Men invade for gain (resources, property).
 - *Example:* If someone cultivates a fertile plot of land, others will unite to seize both the land and its yields.
2. **Diffidence (Mutual Fear):** Men attack preemptively to ensure their safety.
 - *Example:* The most rational strategy for self-preservation is to strike first before others can mount a threat.
3. **Glory (Reputation):** Men react violently to defend their honor against perceived contempt.
 - *Example:* A mere word, smile, or differing opinion can trigger violent conflict.

Consequently, without a common power to hold everyone in awe, humans live in a perpetual condition of war of every man against every man.

3. Life in the State of Nature Hobbes clarifies that "war" consists not solely in actual fighting, but in a known disposition and constant readiness to fight whenever there is no assurance to the contrary.

In this natural condition, there is:

- No agriculture or cultivation of the earth
- No trade, navigation, or use of imported goods
- No commodious building or infrastructure
- No arts, literature, or sciences
- No society

And most critically, there is continual fear and danger of violent death; the life of man is "**solitary, poor, nasty, brutish, and short.**"

To show that this description is grounded in reality, Hobbes appeals to everyday experience:

- You arm yourself when setting out on a journey.
- You lock your doors before going to sleep.
- You lock your chests even against your own children and servants.

These actions prove that individuals naturally distrust and fear their fellows, even within organized civil societies with established laws.

4. Absence of Justice in the State of Nature In the state of nature:

- Where there is no common power, there is no law.
- Where there is no law, there is no justice or injustice.

The two cardinal virtues during war are force and fraud. Mülkiyet (property) does not exist; a person possesses a thing only for as long as they have the power to defend and hold it.

5. Escaping the State of Nature Humans are driven to seek peace by both their passions and their reason:

- Passions that incline men to peace: fear of violent death, desire for things necessary to commodious living, and hope by industry to obtain them.
- Reason suggests convenient articles of peace, which Hobbes terms the **Laws of Nature**.

Chapter 14 – Natural Right and Natural Law Hobbes clearly distinguishes between the two:

- **Right of Nature (*Jus Naturale*):** The liberty each person possesses to use their own power as they see fit for the preservation of their own life.
- **Law of Nature (*Lex Naturalis*):** A general rule discovered through reason that forbids an individual from doing anything destructive to their own life, or omitting the means best suited to preserve it.

The essential distinction:

- **Right** = Liberty to act or forbear
- **Law** = Obligation binding one to an action

Because every person in the state of nature holds a right to everything—even to another person's body—insecurity is total until individuals agree to surrender a portion of their natural rights.

Chapter 17 – The Generation and Purpose of the Commonwealth Though humans naturally love personal liberty and dominion over others, they agree to the restraints of civil society for three reasons:

- Self-preservation
- Security
- The prospect of a more contented life

Without a coercive power armed with the sword, the laws of nature (justice, equity, mercy) cannot be observed, as natural passions (pride, bias, revenge) invariably override them.

- In early times, prior to large states, brigandage and robbery were considered lawful and honorable professions.

- Even today, independent sovereigns maintain fortresses, garrisons, and spies, existing in an ongoing posture of war toward one another.

Only through the covenant of every man with every man—transferring their collective power to a single representative entity (the **Leviathan** or **Mortal God**)—can humanity escape the state of nature and secure lasting civil peace.